

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

9. JEREMIAS SMITH V. NICOLE HAMPTON

25FL0954

This matter is on calendar for a review hearing set per the stipulation of the parties reached on January 8, 2026.

Petitioner filed and served his Supplemental Declaration and his Income and Expense Declaration on April 3, 2026.

Respondent filed her Income and Expense Declaration on April 6th and her Supplemental Declaration on April 7th. Both were served on April 6th.

Petitioner requests the following orders: (1) Order Respondent to cease involving the minor in parental conflicts, including discussions about custody, schedules, or disputes between the parents; (2) Reinforce that all custodial exchanges occur in accordance with the existing parenting plan (2/2/5/5), including adherence to actual school dismissal times for minimum and regular days. When school is in session, exchanges to occur at the minor's school. The parent receiving the minor shall have his or her custodial time begin at the time the other parent drops the child off at school. When school is not in session, exchanges to occur at Safeway on Bass Lake Road at 8:30am; (3) Require Respondent to provide timely and complete notice of all medical appointments and treatment for the minor; (4) Order Respondent to refrain from making unilateral decisions regarding the minor's activities or schedule in a manner that undermines shared decision-making; (5) Order the parties to attend mediation to set a holiday schedule; (6) Order 16 make up days for Petitioner due to Respondent's noncompliance with court orders; and (7) any other orders the court deems to be in the best interests of the minor.

Respondent makes the following requests: (1) Deny Petitioner's request for make-up parenting time for any dates prior to January 8, 2026; (2) Consider Petitioner's conduct in ruling on Petitioner's prior request for Family Code § 271 sanctions; (3) Order Petitioner to allow uninterrupted phone or video contact between the minor and Respondent and communicate in a respectful and civil manner through the co-parenting application; and (4) Deny Petitioner's requests for sanctions and attorney's fees.

First and foremost, the parties are admonished not to discuss matters of custody, schedules, parental disputes, or anything associated with the court proceedings with the minor. The parties were already ordered to refrain from doing so as part of the January 8, 2026 order. Violations of these orders may result in contempt of court or the court modifying custody.

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Also, as part of the court's prior order, the parties are to share joint legal custody. This means that both parties are ordered to provide timely and complete notice of all medical appointments of the minor. Moreover, neither party may make unilateral decisions regarding the minor's schedule or activities that would affect the other party's custodial time with the minor. If the minor is requesting to participate in an activity that would take place during the custodial time of both parties, then both parties must agree to that activity.

Regarding exchanges, when school is in session, the exchange shall occur at the time the minor is dropped off at school. This means if school is released early, or the minor needs to be picked up from school early, then the receiving parent is the parent to pick up the minor. When school is not in session, exchanges shall occur at Safeway on Bass Lake Road at 8:30am.

Petitioner's request for 16 make-up days with the minor is denied as there were no court orders regarding visitation in place prior to January 8th. Respondent is admonished that moving forward, the court may award make-up time should she fail to exchange the minor in accordance with the court ordered schedule.

The requests for attorney's fees and sanctions are both denied. The court finds that both parties have engaged in activity that frustrates the policy of the law to promote settlement and reduce the cost of litigation.

The court is maintaining its prior orders regarding phone calls between the minor and the non-custodial parent.

The parties are referred to Child Custody Recommending Counseling (CCRC) with an appointment on Monday, May 18th at 9:00 AM to address the issue of a holiday schedule. A review hearing is set for Thursday, July 16th at 8:30 AM in Department 5. Supplemental Declarations are to be filed no later than 10 days prior to the review hearing. The parties are admonished that the review hearing is solely to address the issue of a holiday schedule and Supplemental Declarations are to address that issue only. All other matters would require the filing of a new RFO.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #9: THE PARTIES ARE ADMONISHED NOT TO DISCUSS MATTERS OF CUSTODY, SCHEDULES, PARENTAL DISPUTES, OR ANYTHING ASSOCIATED WITH THE COURT PROCEEDINGS WITH THE MINOR. THE PARTIES WERE ALREADY ORDERED TO REFRAIN FROM DOING SO AS PART OF THE JANUARY 8, 2026 ORDER. VIOLATIONS OF THESE ORDERS MAY RESULT IN CONTEMPT OF COURT OR THE COURT MODIFYING CUSTODY.

ALSO, AS PART OF THE COURT'S PRIOR ORDER, THE PARTIES ARE TO SHARE JOINT LEGAL CUSTODY. THIS MEANS THAT BOTH PARTIES ARE ORDERED TO PROVIDE TIMELY AND COMPLETE NOTICE OF ALL MEDICAL APPOINTMENTS OF THE MINOR. MOREOVER, NEITHER PARTY MAY MAKE UNILATERAL DECISIONS REGARDING THE MINOR'S SCHEDULE OR ACTIVITIES THAT WOULD AFFECT THE OTHER PARTY'S CUSTODIAL TIME WITH THE MINOR. IF THE MINOR IS REQUESTING TO PARTICIPATE IN AN ACTIVITY THAT WOULD TAKE PLACE DURING THE CUSTODIAL TIME OF BOTH PARTIES, THEN BOTH PARTIES MUST AGREE TO THAT ACTIVITY.

REGARDING EXCHANGES, WHEN SCHOOL IS IN SESSION, THE EXCHANGE SHALL OCCUR AT THE TIME THE MINOR IS DROPPED OFF AT SCHOOL. THIS MEANS IF SCHOOL IS RELEASED EARLY, OR THE MINOR NEEDS TO BE PICKED UP FROM SCHOOL EARLY, THEN THE RECEIVING PARENT IS THE PARENT TO PICK UP THE MINOR. WHEN SCHOOL IS NOT IN SESSION, EXCHANGES SHALL OCCUR AT SAFEWAY ON BASS LAKE ROAD AT 8:30AM.

PETITIONER'S REQUEST FOR 16 MAKE-UP DAYS WITH THE MINOR IS DENIED AS THERE WERE NO COURT ORDERS REGARDING VISITATION IN PLACE PRIOR TO JANUARY 8TH. RESPONDENT IS ADMONISHED THAT MOVING FORWARD, THE COURT MAY AWARD MAKE-UP TIME SHOULD SHE FAIL TO EXCHANGE THE MINOR IN ACCORDANCE WITH THE COURT ORDERED SCHEDULE.

THE REQUESTS FOR ATTORNEY'S FEES AND SANCTIONS ARE BOTH DENIED. THE COURT FINDS THAT BOTH PARTIES HAVE ENGAGED IN ACTIVITY THAT FRUSTRATES THE POLICY OF THE LAW TO PROMOTE SETTLEMENT AND REDUCE THE COST OF LITIGATION.

THE COURT IS MAINTAINING ITS PRIOR ORDERS REGARDING PHONE CALLS BETWEEN THE MINOR AND THE NON-CUSTODIAL PARENT.

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THE PARTIES ARE REFERRED TO CHILD CUSTODY RECOMMENDING COUNSELING (CCRC) WITH AN APPOINTMENT ON MONDAY, MAY 18TH AT 9:00 AM TO ADDRESS THE ISSUE OF A HOLIDAY SCHEDULE. A REVIEW HEARING IS SET FOR THURSDAY, JULY 16TH AT 8:30 AM IN DEPARTMENT 5. SUPPLEMENTAL DECLARATIONS ARE TO BE FILED NO LATER THAN 10 DAYS PRIOR TO THE REVIEW HEARING. THE PARTIES ARE ADMONISHED THAT THE REVIEW HEARING IS SOLELY TO ADDRESS THE ISSUE OF A HOLIDAY SCHEDULE AND SUPPLEMENTAL DECLARATIONS ARE TO ADDRESS THAT ISSUE ONLY. ALL OTHER MATTERS WOULD REQUIRE THE FILING OF A NEW RFO.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.